

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, AUGUST 11, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, August 11, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, August 10, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at **8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0086393 LVNV Funding LLC v. Kumansky, Alex

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Enforce Settlement

Plaintiff moves to enforce the settlement agreement pursuant to Code of Civil Procedure section 664.6. The court previously continued this matter, noting that while there was evidence of service of the motion on an attorney, there was no evidence of service on defendant and there is nothing in the court's file to show defendant had an attorney of record. (Law and motion minutes, Jun. 30, 2026.) The court directed plaintiff to serve all moving papers on defendant directly, file and serve a notice of continued hearing, and file all proofs of service with the court by July 7, 2026. (*Ibid.*) Plaintiff has not filed these documents. As the motion is supported by insufficient evidence of proper service to the defendant, the motion is denied without prejudice.

2. M-CV-0093623 Sunbelt Rentals Inc. v. Timothy P Hansen

Defendants' motion to set aside default

Defendants, Timothy P. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021 and Cheryl L. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021, filed a motion to set aside within 60 days of the default entered on November 19, 2025, pursuant to Code of Civil Procedure sections Code of Civil Procedure § 473 (b).

Defendants base this motion on the grounds of excusable neglect and ignorance of the legal process. Plaintiff and defendant Diego Ibarra have not filed a response.

Pursuant to Code of Civil Procedure section 473 (b), “[t]he court may, upon any terms as may be just, relieve a party ... from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473 (b).) A motion to set aside must be made “within a reasonable time, in no case exceeding six months” after the judgment, dismissal, order, or proceeding was taken. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate diligence in seeking to set aside the default once ... discovered.” (*Stiles v. Wallis* (1983) 147 Cal.App.3d 1143, 1147-48, 195 Cal.Rptr. 377. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981-82; Code Civ. Proc., § 473 (b).)

In this case, defendants brought the motion within two months following the entry of default. The court will accept defendants’ avowal of excusable neglect and ignorance of the legal process as sufficient to justify relief from default. The motion is therefore granted pursuant to section 473(b). The default entered on November 19, 2025, is hereby set aside. Defendants Timothy P. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021 and Cheryl L. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021, shall file and serve their answer to plaintiff’s complaint by **August 21, 2026**.

3. M-CV-0096902 West Coast Self-Storage Group v. Macrae, Weston

The motion to quash service of summons and the motion for preliminary injunction are both dropped from the calendar as no moving papers were filed with the court.

4. S-CV-0047819 Real, Andrew v. Robles, Vincente

The motion for summary judgment is dropped from calendar as no moving papers were filed with the court.

5. S-CV-0049211 Ferriera, Danielle v. Anderson Merchandisers

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Final Approval of the Class Action and PAGA Settlement

Plaintiff seeks final approval of the parties' class action and PAGA action settlement. The court observes two procedural deficiencies with the motion. First, there is no evidence in the court's file that this motion was served on defendant. Second, the declaration of plaintiff Danielle Ferriera (attached as Exhibit 3 to the declaration of counsel Harp) is neither signed nor dated.

The court, on its own motion, continues the motion hearing to **September 8, 2026 at 8:30 a.m. in Department 32**. Plaintiff is directed to forthwith serve the moving and supporting papers on defendant and by August 25, 2026 file a proof of service. Plaintiff is further directed to forthwith file and serve (1) a notice of continued hearing and (2) a declaration of plaintiff that is signed and dated by plaintiff and shall file proofs of service of these documents by August 25, 2026.

6. S-CV-0049793 Ratzak, Jessica v. Thinkware Systems USA

Motion for Preliminary Approval

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.)

The court has carefully considered the class action settlement agreement (Friedman Decl., Exh. A), plaintiff's moving papers in connection with the motion filed February 20, 2026, the supplemental declarations of counsel Friedman filed June 16, 2026 and August 4, 2026, and the entire court file. The court determines a sufficient showing has been made that the class action settlement is fair, adequate, and reasonable. The court preliminarily approves the class action settlement agreement attached as Exhibit A to the February 20, 2026 declaration of counsel Friedman. The court also approves the proposed form of notice attached as Exhibit B to the February 20, 2026 declaration of counsel Friedman. As to the proposed form of notice attached as Exhibit C to the February 20, 2026 declaration of counsel Friedman, the court observes item 14 states the final approval hearing will be in Department 6 before the Honorable Garen Horst at 101 Maple Street, Auburn, CA 95603. Item 14 of Exhibit C should dictate Department 32, the Honorable Trisha J. Hirashima, and the address of 10820 Justice Center Drive, Roseville, California

95678. With those changes, the court also approves the proposed form of notice attached as Exhibit C to the February 20, 2026 declaration of counsel Friedman.

For the purposes of the settlement, the court hereby certifies the class as “all persons within the United States who purchased the following Thinkware Products between January 25, 2019 and August 31, 2024: X700 dash cams, F200PRO dash cams, DC-M2-FG-IR dash cams, DC-M2-FG dash cams, and F70PRO dash cams,” excluding members of the court, class counsel, Thinkware and its employees and agents.

The court preliminarily appoints and designates Jessica Ratzak as the class representative. The court preliminarily appoints and designates Adrian R. Bacon and Todd M. Friedman of the Law Offices of Todd M. Friedman, P.C. as class counsel. The court appoints and designates Eisner Advisory Group, LLC as the settlement administrator.

The court also incorporates by reference all findings and orders set forth in the Proposed Order submitted in connection with the instant motion.

The final approval hearing is scheduled for **January 12, 2027 at 8:30 a.m. in Department 32**. The motion for final approval shall be filed and served in accordance with Code of Civil Procedure section 1005(b).

Case Management Conference

In light of the court’s above ruling granting preliminary approval, no appearance is required and no further case management conference is scheduled at this time.

7. S-CV-0050702 SVLA LLC v. Mark Tanner Construction Inc.

Defendant Jason Wooley dba Lot C Architecture’s Motion for Summary Judgment / Adjudication and Defendant Mark Tanner Construction, Inc.’s Motion for Summary Adjudication is **continued to August 25, 2026, at 8:30 a.m. in Department 32**.

8. S-CV-0051163 France, Jason v. Powers, Bridget

The motion for attorneys’ fees is continued to **August 20, 2026 at 8:30 a.m. in Department 3** to be heard by the **Honorable Michael W. Jones**. No further briefing is permitted.

9. S-CV-0055053 Jacobson, Annika v. Warren T Eich Middle School

Roseville City School District’s Demurrer to First Amended Complaint

Defendant Roseville City School District (district) demurs to the second cause of action in the first amended complaint, which is the only cause of action alleged against the district, on the basis that plaintiffs fail to allege the essential elements of a claim for

dangerous condition on public property pursuant to Code of Civil Procedure section 835. Plaintiffs oppose the demurrer.

Evidentiary Rulings

The district requests judicial notice for the Sierra Gardens School Field Area Agreement with GT Soccer; the initial complaint filed by plaintiffs on April 15, 2024; the tentative ruling on the district's demurrer to plaintiffs' initial complaint, issued on September 22, 2025; and amended civil minutes regarding district's demurrer to plaintiffs' initial complaint, issued on October 14, 2025. The district's request is denied as to the agreement with GT Soccer and otherwise granted. (*See The Travelers Indemnity Co. of Connecticut v. Navigators Specialty Ins. Co.* (2021) 70 Cal.App.5th 341, 354.)

Ruling on the Motion

The first amended complaint alleges that on or about October 14, 2023, in the grass field adjacent to Warrant T. Eich Middle School, plaintiff Annika Jacobson, a minor, was playing with her twin sister plaintiff, Hanna Jacobson, on the recreational grass field adjacent to Warren T. Eich Middle School. (First Amended Complaint ¶¶ 16, 22.) When Hanna leaned against the side of the unsecured soccer goal post, it toppled over onto Annika, causing bodily injuries. (First Amended Complaint ¶ 22.) Annika suffered loss of consciousness, a fractured nose, dental injuries, gum and mouth injuries, a laceration requiring stitches, brain injury, and scarring. (*Id.*)

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10 (e), (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Second Cause of Action: Dangerous Condition on Public Property

The second cause of action alleges that the district was negligent in the use, ownership, operation, management, security, and maintenance of the property where the goal post was located. Government Code section 835 establishes that “a public entity is liable for injury caused by a dangerous condition of its property” where a plaintiff establishes several conditions. To prevail, a plaintiff must show that (1) the property was in a dangerous condition at the time of the injury, (2) the dangerous condition caused the injury (3) the condition created a reasonably foreseeable risk of the kind of injury incurred, and (4a) a negligent or wrongful act or omission of an employee of the public entity within the scope of his or her employment created the condition or (4b) the public

entity had actual or constructive notice of the dangerous condition in time to have taken measures to protect against it. (Gov. Code § 835; *Sun v. City of Oakland* (2008) 166 Cal.App.4th 1177, 1183.)

A dangerous condition is “a condition of property that creates a substantial (as distinguished from a minor, trivial, or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code § 830, subd. (a).) “The existence of a dangerous condition is usually a question of fact but may be resolved as a question of law if reasonable minds can come to but one conclusion.” (*Chowdhury v. City of Los Angeles v. City of Los Angeles* (1995) 38 Cal.App.4th 1187, 1194.)

The district contends that the plaintiffs failed to allege specific facts to establish: (1) the district owned or controlled the premises where the alleged incident took place; (2) a dangerous physical condition on the district’s property; (3) an employee of the district negligently created a dangerous condition on the property; (4) actual or constructive knowledge pursuant to Government Code section 835, subdivision (b), and section 835.2, subdivisions (a) and (b); and (5) the district cannot be liable under the Civic Center Act, which apportions liability between school districts and the parties to which they lease use of facilities.

The district argues plaintiffs failed to plead ownership or control. Plaintiffs allege the district and other defendants “owned, rented, leased, subleased, licensed, operated, managed, or otherwise retained control over access to and safety conditions of the subject premises” and that the district and other defendants “owned, operated, maintained, secured, and controlled the subject goal post located on the subject premises. (First Amended Complaint ¶¶ 17, 50.) The court finds this allegation sufficiently alleges ownership and control of the subject premises.

As to whether a dangerous physical condition existed on the district’s property, Government Code section 830(a) defines dangerous condition as a condition of property creating a substantial risk of injury when the property or adjacent property is used with due care in a reasonably foreseeable manner. Plaintiffs allege that the district permitted, approved, ratified, or knowingly allowed the subject goal post to remain indefinitely at the subject premises in a fixed position, where it functioned as a de facto permanent fixture integrated into the physical and recreational environment of the subject premises. (First Amended Complaint ¶ 51.) Plaintiffs allege that the district failed to secure, anchor, remove, warn of danger, or otherwise stabilize the goal, despite the dangerousness of the subject goal post and foreseeability of injury to the public. (*Id.*)

“[P]ublic property has also been considered to be in a dangerous condition ‘because of the design or location of the improvement, the interrelationship of its structural or natural features, or the presence of latent hazards associated with its normal use.’” (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, 148-49.) The court finds the allegations sufficiently allege a dangerous physical condition.

The district argues plaintiffs do not identify a specific district employee who placed the goal post. However, the first amended complaint pleads both statutory paths under Government Code section 835: (1) creation or contribution to the dangerous condition; and (2) actual or constructive notice.

The first amended complaint alleges that the district “allowed an unsecured, unmounted, and inadequately maintained subject goal post to remain on the subject premises in such a manner that the premises as a whole were rendered dangerous,” and the district, through its employees, permittees, “lessees acting with its permission and under its authority or control, created, contributed to, failed [to] remedy, or failed to warn the dangerous condition by ... failing to remove or secure the subject goal post.” (First Amended Complaint ¶¶ 54-55.)

The first amended complaint also alleges actual or constructive notice. Plaintiffs allege upon information and belief that the district “had actual or constructive notice of the dangerous condition for a sufficient period of time prior to the incident to have taken measures to protect against it, but failed to do so” and that the dangerous condition was “open and obvious to anyone inspecting or maintaining the subject premises and existed sufficient period of time such that, in the exercise of reasonable care” the district would have “discovered and corrected it.” (First Amended Complaint ¶ 56.)

The foregoing allegations sufficiently satisfy the requirements of Government Code § 835(a) and (b) at the pleading stage.

The district argues that it is not liable under the Civic Center Act. Education Code § 38134 under the Civic Center Act creates separate responsibility for the district and outside organization using the district property. Education Code section 38134(h)(1) provides that a school district authorizing use of school facilities or grounds is liable for injury resulting from the school district’s negligence in ownership and maintenance of the facilities or grounds. The user entity is liable for injury resulting from that entity’s negligence during the use of the facilities or grounds.

The district cites *Grossman*, where a plaintiff sustained injuries from a fall from an inflatable slide at a school carnival. However, *Grossman* is distinguishable. *Grossman v. Santa Monica-Malibu Unified School District* was a summary judgment case, not a demurrer. (*Grossman* (2019) 33 Cal.App.5th 458.) In addition, a booster club set up the slide for a temporary carnival. Here, plaintiffs allege that the district permitted, approved, ratified, or knowingly allowed the subject goal post to remain indefinitely at the subject premises in a fixed position, where it functioned as a de facto permanent fixture integrated into the physical and recreational environment of the subject premises. (First Amended Complaint ¶ 51.) Plaintiffs allege the district retained control over access and safety conditions, controlled the goal post, allowed it to remain on the premises, failed to secure or warn, and had actual or constructive notice. (First Amended Complaint ¶¶ 17, 54-55.) *Grossman* itself recognizes that Education Code § 38134 allocates separate risks between the district and the outside user and that the school district is liable for

negligence in ownership and maintenance while the user entity is liable for negligence during use.

Based on the foregoing, the demurrer is overruled in its entirety. Defendant Roseville City School District shall file an answer to plaintiffs' first amended complaint on or before **August 28, 2026**.

Roseville City School District's Motion for Sanctions

Defendant Roseville City School District moves for sanctions, stating plaintiffs had no evidentiary or factual basis for filing the first amended complaint against the district. (Mot. for Sanctions at 5.) Plaintiffs oppose the motion.

As defendant's demurrer has been overruled in its entirety, the motion for sanctions is denied.

10. S-CV-0055662 Fallahi-Marzooni, Keyan v. Peers, Jessica

Defendant's Motion for Judgment on the Pleadings

Defendant Jessica Peers move for judgment on the pleadings as to each cause of action alleged in plaintiff Keyan Fallahi-Marzooni's first amended complaint. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) The grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Ibid.*)

Previously, the court continued the hearing to permit the parties to complete the meet and confer process. Declarations filed by the parties establish that meet and confer did occur after the continuance was ordered but did not resolve any issues identified by the motion.

As a preliminary matter plaintiff argues the motion is barred as the court overruled a prior demurrer to the first amended complaint brought by defendant. The court notes defendant's demurrer was overruled on procedural grounds based on the omission of a memorandum of points and authorities. A court may grant a motion for judgment on the pleadings if the basis of the motion is not a legal argument that was previously overruled on demurrer. (*Faber v. Bay View Terrace Homeowners Assn.* (2006) 141 Cal.App.4th 1007, 1013.) Here, the court did not previously consider or rule on the substantive legal arguments presented by the motion for judgment on the pleadings. The court finds defendant's motion is properly before the court.

Defamation (Libel and Slander)

Plaintiff's first cause of action for defamation (libel and slander) alleges defendant knowingly published false statements to third parties accusing plaintiff of harassment, stalking, sexual misconduct, restraining orders and other dangers. Defendant moves for judgment on the pleadings on the grounds the claim is barred by the applicable statute of limitations and fails to state sufficient facts to constitute a valid cause of action.

The statute of limitations for a libel or slander action is one year. (Code Civ. Proc. §340 (c); *Federal Deposit Ins Corp. v. Dintino* (2008) 167 Cal.App.4th 333, 348.) "The elements of a defamation claim are: (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and has a natural tendency to injure or causes special damage." (*Sanders v. Walsh* (2013) 219 Cal.App.4th 855, 862.). "Because the statement must contain a provable falsehood, courts distinguish between statements of fact and statements of opinion for purposes of defamation liability. Although statements of fact may be actionable as libel, statements of opinion are constitutionally protected." (*McGarry v. University of San Diego* (2007) 154 Cal.App.4th 97, 112). "[P]ublication occurs when a statement is communicated to any person other than the party defamed." (*Kelly v. General Telephone Co.* (1982) 136 Cal.App.3d 278, 284.)

To extinguish a cause of action on statute of limitations grounds by way of demurrer or motion for judgment on the pleadings, the running of the statute of limitations must appear "clearly and affirmatively" from the face of the complaint. It is not enough that the complaint *might* be time barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 321.) Here, while certain defamatory statements fall outside of the statute of limitations, the court cannot conclude that the first amended complaint clearly and affirmatively establishes the entirety of the cause of action is barred. Nor does defendant establish that the claim fails to state sufficient facts to constitute a valid cause of action. The motion is denied as to the first cause of action.

Intentional Infliction of Emotional Distress

Plaintiff's second cause of action for intentional infliction of emotional distress. Defendant argues the claim is barred by the applicable statute of limitations and fails to state sufficient facts to constitute a valid cause of action.

The statute of limitations for intentional infliction of emotional distress is two years. (Code Civ. Proc. § 335.1; *Pugliese v. Superior Court* (2007) 146 Cal.App.4th 1444, 1450.) A cause of action for intentional infliction of emotional distress exists where there is "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001.). A defendant's conduct is "outrageous" when

it is “so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Id.*).

Here, the court cannot conclude that the first amended complaint clearly and affirmatively establishes the entirety of the cause of action is barred. Nor does defendant establish that the claim fails to state sufficient facts to constitute a valid cause of action. The motion is denied as to the second cause of action.

Negligent Infliction of Emotional Distress

Plaintiff’s third cause of action alleges negligent infliction of emotional distress. Defendant moves for judgment on the pleadings on the grounds the claim is barred by the applicable statute of limitations and fails to state sufficient facts to constitute a valid cause of action.

A claim for negligent infliction of emotional distress is essentially a claim for negligence. (*Belen v. Ryan Seacrest Productions, LLC* (2021) 65 Cal.App.5th 1145, 1165.) The statute of limitations for this claim is two years. (Code Civ. Proc. § 335.1.) “The threshold element for a cause of action for negligence is the existence of a duty to use care toward an interest of another that enjoys legal protection against unintentional invasion.” (*Paz v. State of California* (2000) 22 Cal.4th 550, 559.) The plaintiff must show that the defendant breached the duty of reasonable care and that such breach was a proximate cause of the injury. (*Brown v. Poway Unified School District* (1993) 4 Cal.4th 820, 826.)

Here, the court cannot conclude that the first amended complaint clearly and affirmatively establishes the entirety of the cause of action is barred. Nor does defendant establish that the claim fails to state sufficient facts to constitute a valid cause of action. The motion is denied as to the third cause of action.

Retaliation

Plaintiff’s fourth cause of action alleges retaliation. Defendant moves for judgment on the pleadings on the grounds the claim fails to state sufficient facts to constitute a valid cause of action.

Retaliation may be alleged under the Fair Employment and Housing Act (FEHA) against an employer. Here, the first amended complaint does not plead an employment relationship between plaintiff and defendant under which the California Fair Employment and Housing Act would give rise to a retaliation claim. “[T]he fact that section 12940, subdivision (h) makes it unlawful for any ‘person’ to retaliate for complaining of discrimination cannot be read to impose liability on ‘nonemployer individuals.’” (*Fitzsimmons v. California Emergency Physicians Medical Group* (2012) 205 Cal.App.4th 1423, 1428.)

As to plaintiff's fourth cause of action for retaliation, defendant's the motion is granted without leave to amend.

Harassment

Plaintiff's fifth cause of action alleges harassment under Code of Civil Procedure section 527.6. Defendant moves for judgment on the pleadings on the grounds the claim fails to state sufficient facts to constitute a valid cause of action.

"The elements of unlawful harassment, as defined by the language in Code of Civil Procedure section 527.6 are as follows: (1) 'a knowing and willful course of conduct' entailing a 'pattern' of 'a series of acts over a period of time, however short, evidencing continuity of purpose'; (2) 'directed at a specific person'; (3) 'which seriously alarms, annoys, or harasses the person'; (4) 'which serves no legitimate purpose'; (5) which 'would cause a reasonable person to suffer substantial emotional distress' and 'actually cause[s] substantial emotional distress to the plaintiff'; and (6) which is not a '[c]onstitutionally protected activity.' (*Schlid v. Rubin* (1991) 232 Cal.App.3d 755, 762).

Code of Civil Procedure section 527.6 permits a person to petition the court for a temporary restraining order and order prohibiting harassment after hearing as provided in the statute. Plaintiff does not demonstrate that the statute permits a civil claim for harassment to be alleged outside of the context of a petition for civil harassment restraining order. As to plaintiff's fifth cause of action for harassment, defendant's motion for judgment on the pleadings is granted without leave to amend.

Tortious Interference with Prospective Economic Advantage

Plaintiff's sixth cause of action alleges tortious interference with prospective economic advantage. Defendant moves for judgment on the pleadings on the grounds the claim is barred by the applicable statute of limitations and fails to state sufficient facts to constitute a valid cause of action.

The statute of limitations for this claim is two years. (Code Civ. Proc. §339(1).) A claim for tortious interference with prospective economic requires the plaintiff to prove five elements: "(1) an economic relationship between plaintiff and some third party, with the probability of future economic benefit to plaintiff; (2) defendant's knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to plaintiff proximately caused by the acts of defendant." (*Youst v. Longo* (1987) 43 Cal.3d 64, 71, fn. 6.) The first element is 'an economic relationship between the plaintiff and some third person containing the probability of future economic benefit to the plaintiff.' (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 330). And the "intent" element requires, at minimum, that plaintiff plead and prove that "the defendant knew that the interference was certain or substantially certain to occur as a result of its action." (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1154. See *Della Penna v. Toyota Motor Sales, U.S.A., Inc.* (1995) 11 Cal.4th 376, 292 ["A] plaintiff seeking to recover for alleged

interference with prospective contractual or economic relations must plead and prove as part of its case-in-chief that the defendant...knowingly interfered with the plaintiff's expectancy"].).

The allegations of the first amended complaint are insufficient to validly state this claim as plaintiff fails to identify any specific third party with whom he had a relationship that was likely to result in future economic benefit. As to plaintiff's sixth cause of action, the motion is granted without leave to amend.

Civil Conspiracy

Plaintiff's seventh cause of action alleges civil conspiracy. Defendant moves for judgment on the pleadings on the grounds the claim fails to state sufficient facts to constitute a valid cause of action.

The elements of civil conspiracy are: (1) the formation and operation of the conspiracy, (2) wrongful conduct in furtherance of the conspiracy, and (3) damages arising from the wrongful conduct. (*Kidron v. Movie Acquisition Corp.* (1995) 40 Cal.App.4th 1571, 1581.) Civil conspiracy is not an independent tort. (*Applied Equipment Corp v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 510-511 ["Conspiracy is not a cause of action"].) Rather, civil conspiracy is a "legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration." (*Id.*)

The court finds the first amended complaint fails to allege sufficient facts to state a valid cause of action for conspiracy. As to plaintiff's seventh cause of action, defendant's motion for judgment on the pleadings is granted without leave to amend.

Fraud

Plaintiff's eighth cause of action alleges fraud. Defendant moves for judgment on the pleadings on the grounds the claim fails to state sufficient facts to constitute a valid cause of action and lacks particularity.

"The elements of fraud, which give rise to the tort action for deceit are, (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Golden Eagle Land Investment, L.P. v. Rancho Santa Fe Association* (2018) 19 Cal.App.5th 399, 428.) "In California, fraud must be plead specifically; general and conclusory allegations do not suffice. 'Thus "the policy of liberal construction of the pleadings... will not ordinarily be invoked to sustain a pleading defective in any material respect ... This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means representations were tendered.'" (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

Plaintiff's eighth cause of action lacks the necessary specificity to plead fraud, and plaintiff does not plead reliance on any allegedly false or misleading statements made by defendant. Moreover, the alleged misrepresentations were made not to the plaintiff, but rather to the California Civil Rights Department. (First Amend. Compl. at pgs. 50-54, Exh. J).

As to plaintiff's eighth cause of action for fraud, defendant's motion for judgment on the pleadings is granted the motion is granted without leave to amend.

Conclusion

Defendant's motion for judgment on the pleadings is granted without leave to amend as to the third through eighth causes of action and is otherwise denied. Defendant shall file and serve her answer to the first amended complaint on or before August 28, 2026.

11. S-CV-0056495 Olberding, Deborah M v. Boone, Christopher M

This tentative ruling is issued by **Commissioner Michael A. Jacques**. If oral argument is requested, it will be heard on **August 12, 2026, at 8:30 a.m. in Department 3** before Commissioner Michael A. Jacques. Department 3 is located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorney's Fees

Respondent moves for attorney's fees as the alleged prevailing party in a civil harassment restraining order (CHRO) proceeding. Petitioner opposes the motion.

Background

On December 2, 2025, petitioner Deborah Marie Olberding filed a request for civil harassment restraining order against respondent Christopher Michael Boone in this court. (Theodoropoulos Decl., ¶ 5, Exh. A.) On January 7, 2026, petitioner dismissed the petition without prejudice. (Resp't Opp'n, Exh. A.) As the court had not yet processed the dismissal by the hearing date, on January 9, 2026, the court dropped the matter when petitioner failed to appear at the hearing. On January 26, 2026, the Santa Clara County Court entered a five-year civil harassment restraining order after hearing against Ms. Olberding, which she did not contest. (Theodoropoulos Decl., ¶¶ 5-6, Exh. C.) On April 20, 2026, the Santa Clara County Superior Court granted Mr. Boone's motion for attorney's fees and costs in the total amount of \$14,112.53. (Theodoropoulos Supp. Decl., ¶¶ 7-8, Exh. G.)

Respondent seeks an award of attorney's fees of \$19,255.75 incurred for this CHRO action, plus additional attorney's fees incurred in filing this motion.

Analysis

“A person who has suffered harassment as defined in subdivision (b) may seek a temporary restraining order and an order after hearing prohibiting harassment as provided in this section.” (Code Civ. Proc., § 527.6 (a)(1).) “The prevailing party in an action brought pursuant to this section may be awarded court costs and attorney’s fees, if any.” (Code Civ. Proc., § 527.6 (s).)

Prevailing party

Respondent contends he is the prevailing party.

In *Adler v. Vaicius*, (1993) 21 Cal.App.4th 1770, the California Court of Appeal held that a respondent in a civil harassment proceeding under section 527.6 was entitled to attorney’s fees as the prevailing party after the petitioner voluntarily dismissed her petition. (See *Adler*, 21 Cal.App.4th at 1774 [respondent entitled to attorney’s fees as prevailing party following petitioner’s voluntary dismissal of section 527.6 petition; attorney fees recoverable under statutory authorization deemed element of costs].)

“The decision whether to award attorney fees to a prevailing party—plaintiff or defendant—under section 527.6 is a matter committed to the discretion of the trial court.” (*Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802-03.)

Petitioner argues she dismissed the petition without prejudice, and respondent did not cite any legal authority that a dismissal without prejudice in this action is a final determination on the merits. Moreover, she argues section 527.6 does not define “prevailing party.” (Opp’n at 2.)

In *Elster v. Friedman*, the Court of Appeal observed that because section 527.6, does not define “prevailing party ... We turn for guidance to a more general statute, Code of Civil Procedure section 1032, which states in part: ‘(a)(4) ‘Prevailing party’ includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. When any party recovers other than monetary relief and in situations other than as specified, the ‘prevailing party’ shall be as determined by the court.’” (*Elster*, 211 Cal.App.3d at 1443.)

In *Elster* and *Adler*, the petitioner moved to dismiss, as was the case here. Therefore, the court may find respondent the prevailing party and award attorney’s fees, in its discretion.

Under section 527.6, subdivision (s), “[t]he prevailing party in an action brought pursuant to this section may be awarded court costs and attorney’s fees, if any.” By its terms, the subdivision gives trial courts discretion “to award attorney fees to a prevailing party—plaintiff or defendant.” (*Krug*, 172 Cal.App.4th at 802). The “determination of the

prevailing party lies in the court's sound discretion" and that "determination must be upheld unless there is a manifest abuse of discretion." (*Elster*, 211 Cal.App.3d at 1443.)

Therefore, the court finds, in its discretion, respondent meets the definition of the prevailing party.

Attorney Fee Calculation

Respondent seeks an award of attorney's fees of \$19,255.75 incurred in this CHRO action, plus additional attorney's fees incurred in filing this motion. (Mot for Atty Fees at 12.) Respondent states a total of 35.75 hours were expended on the Placer County proceedings by two attorneys. (*Id.* at 10.) Respondent states counsel spent 5.5 hours preparing the motion for attorney's fees, incurring \$2,722.50 in fees, at the hourly rate of \$495.00 per hour. (Theodoropoulos Decl., ¶ 21.) Respondent states Constantine M. Panagotacos is a partner with over 15 years of civil litigation experience with an hourly rate of \$695.00 in the San Francisco Bay Area. (Theodoropoulos Decl., ¶¶ 15-16.) Respondent states Christina Theodoropoulos is an associate with an hourly rate of \$495.00 in the San Francisco Bay Area. (*Id.*)

Petitioner disputes, at minimum, the itemized invoices above which amount to \$7,280.00. (Supp. Opp'n at 5.) Petitioner also disputes the remaining total (\$19,255.75-\$7,280.00 or \$11,975.75) as not reasonable in a matter without discovery or contested hearings. (*Id.*)

The court notes petitioner specifically disputes 14.5 hours expended of the 35.75 total hours claimed by respondent. (See Supp. Opp'n at 2-5.) Although petitioner disputes the 2.25 hours to appear for the hearing, the dismissal had not been processed in time for the hearing. The court also observes respondent's counsel rates for the San Francisco Bay Area of \$495 and \$695, respectively, are unreasonable for a CHRO action in Placer County. The court notes this case was dropped at the hearing. Therefore, in its discretion, the court awards attorney's fees to respondent for 26.5 hours (the difference of 35.75 hours and the 14.5 hours disputed by the petitioner with adding 2.25 hours to appear at the January 9, 2026 hearing and 3 hours for the filing of this motion) at \$400 per hour (the high end attorney fee rate for a CHRO action in Placer County) for a total of \$10,600 in attorney's fees plus costs of \$59.50.

Conclusion

Accordingly, in its discretion, the court grants respondent's motion for attorney's fees and costs to respondent, as the prevailing party, and awards \$10,600, plus costs of \$59.50.

12. S-CV-0057018 King, Ted Arthur v. Tarver, Russell Lee

The motion to vacate judgment in S-CV-0042357 is continued to **August 28, 2026 at 8:30 a.m. in Department 1** to be heard by **Commissioner S. Dehr**. Department 1 is located at 101 Maple Street, Auburn, California 95603

13. S-CV-0057662 In Re the Petition of Masera, Frank Louis

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Petition for Approval of Minor's Compromise of Claim

Petitioner Frank Louis Masera seeks to compromise the claim of minor Milan Masera. Petitioner requests the court approve attorneys' fees to petitioner's counsel in the amount of \$33,333.33, which is 1/3 of the minor's gross recovery. The court typically does not approve attorneys' fees for a petition for approval of minor's compromise above 1/4 of the gross settlement amount absent extraordinary circumstances. The petition is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is waived.
